

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/19/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: C25-03317
CASE NAME: LEONARDO BROWN VS. ANTHONY WHITE
*HEARING ON MOTION IN RE: FOR PRELIMINARY INJUNCTION
FILED BY:
***TENTATIVE RULING**

Parties have informed the court that they have tentatively settled the matter and wish to continue the motion.

The matter has already been rescheduled, and the parties have been notified.

This date is vacated.

2. 9:00 AM CASE NUMBER: L22-01581
CASE NAME: ESPINOZA BAIL BONDS, INC VS. JACQUELINE ROBLES
*HEARING ON MOTION IN RE: MOTION TO AMEND JUDGMENT
FILED BY: ESPINOZA BAIL BONDS, INC
***TENTATIVE RULING**

Plaintiff filed a Motion to Amend Judgment. The Motion was served on the Defendant by mail at an

address where Defendant was served with process by virtue of substitute service.

The Motion is unopposed.

Background

On 12/5/23, counsel for Plaintiff filed a Default Judgment identifying the Plaintiff as a corporation, namely, Espinoza Bail Bonds, Inc. Subsequently, per Plaintiff's Motion and accompanying declaration, counsel for Plaintiff learned that Plaintiff's correct name is Jose Espinoza, dba Espinoza Bail Bonds.

Analysis

California Code of Civil Procedure §187 provides that a California court may use "all the means necessary" when the course of proceeding is not specifically provided for by the Code of Civil Procedure or other statute to carry its jurisdiction into effect:

“... When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code.” Code of Civil Procedure Section 187.

California Code of Civil Procedure § 473 (d) further provides that the court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

In the instant matter, the entry of Plaintiff as a corporate entity in the Judgment was clearly a clerical error. This court will exercise discretion and grant Plaintiff leave to amend the Judgment and list Plaintiff by the appropriate name.

Disposition

Plaintiff's Motion is granted.

Plaintiff is to file a proposed order and judgment.

3. 9:00 AM CASE NUMBER: L24-08852
CASE NAME: TWO JINN, INC. VS. SOPHIA GARCIA

***HEARING ON MOTION IN RE: PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS;**

FILED BY: TWO JINN, INC.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, included as Attachment One to Exhibit A of the Declaration filed 8/28/25, were deemed to be true by the court, ("Deemed Admitted Order").

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 8/28/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$7,115, over the issuance of a bail bond.

Defendant's Answer denies the allegations of the Complaint.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions served on Defendant which was granted by the Court. The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$7,115 in principal, plus interest, costs, and attorneys' fees, for a total amount of \$12,273.56 (Memos on costs and fees were filed on 8/23/25 and 2/13/26.)

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall submit a proposed order and judgment.

4. 9:00 AM CASE NUMBER: L24-09985
CASE NAME: WELLS FARGO BANK, N.A. VS. JENNIFER RODA
***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE**
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

Plaintiff also submitted a memo of costs and fees, totaling \$1,365, and filed on 2/17/26.

In the order filed 12/24/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 9/25/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Deemed Admitted Order, as well as the declaration filed by the Plaintiff on 9/25/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the

defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$34,487.29, on a loan.

Defendant’s Answer denies the allegations of the Complaint.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt, owing, \$34,487.29, as well as costs and fees.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED, in the principal amount of \$34,487.29.
2. Additional costs and fees of \$1,365 are granted.
3. Plaintiff shall submit a proposed order and judgment.

5. 9:00 AM CASE NUMBER: L24-10360
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. FERNANDO RIVERA
*HEARING ON MOTION FOR DISCOVERY

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall submit a proposed order.

6. 9:00 AM CASE NUMBER: L24-10371

CASE NAME: CITIBANK N.A. VS. LATASHA DINH

*HEARING ON MOTION FOR DISCOVERY

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed Motion, on 3/11/26, for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue in their Exhibit A (Attachment One, numbers One through Eight) to their Motion.

Plaintiff attached a proof of service, indicating mail service to Defendant's attorney of record.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Attachment One to Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall submit a proposed order.

7. 9:00 AM CASE NUMBER: L24-10399
CASE NAME: DISCOVER BANK VS. LUIS MUNOZ SARABIA
*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION,

**MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF COUNSEL FOR PLAINTIFF
AND ITS ACCOMPANYING EXHIBITS
FILED BY: DISCOVER BANK**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment based on a written agreement between the parties, under Section 664.6 of the CCP.

Plaintiff's proof of service reflects mail service on Defendant.

However, Defendant was never served with process, and there is no evidence corroborating the fact that the mailing address is indeed that of the Defendant.

Thus, mail service, in the instant matter, is insufficient.

Disposition

Motion will be continued to 8/18/26, 9am.

Plaintiff to notify Defendant properly.

8. 9:00 AM CASE NUMBER: L25-01776

CASE NAME: CAPITAL ONE N.A. VS. VANESSA JACKSON

***HEARING ON MOTION IN RE: FOR AN ORDER THAT MATTERS IN REQ FOR ADMIS OF TRU OF
FACTS BE DEEM ADMIT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a substantially compliant response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall submit the order.

9. 9:00 AM CASE NUMBER: L25-05007
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELLY CLAWSON
*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND
ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where Defendant was served with process and acknowledged service.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule,

then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,007.69, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,007.69.

Plaintiff shall submit the order and proposed judgment.

10. 9:00 AM CASE NUMBER: L25-05481

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELLY CLAWSON

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended motion, on 3/27/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where they were personally served with process.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,289.47, plus costs, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,289.47.

Plaintiff shall submit the order and judgment.

11. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Background

Defendant filed a Motion to stay proceedings pending appeal.

The appeal stems from a decision by this court, on 2/3/26, to deny Defendant's request to compel arbitration and stay proceedings in superior court.

There is a trial in the matter set in August, 2026.

Analysis

Under Section 916(a) of the CCP, "[T]he perfecting of an appeal stays proceedings in the trial court upon the ... order appealed from or upon the matters embraced therein, or affected thereby."

In the instant matter, the issue resolved on 2/3/26, clearly affects the remainder of these proceedings, particularly the trial. If the appeal is resolved in Defendant's favor, then compelled arbitration may still occur in the matter, staying the proceedings, particularly the trial.

Thus, Section 916 applies.

Moreover, while there are some exceptions under Section 917 et seq., they do not appear to apply to the instant matter.

Disposition

Defendant's Motion to Stay Proceedings pending appeal is granted.

The court trial will be vacated.

A CMC is scheduled for 10/23/26 at 8:30 am.

The court will file the order and notice the parties.

12. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Defendant has filed a motion for reconsideration ("Motion"), under CCP 1008, asking this court to reconsider its order issued on 2/3/26 ("Arbitration Order").

The Motion was timely served on the Plaintiff.

Plaintiff filed an opposition.

Background

In the Arbitration Order, this court denied Defendant's motion to compel arbitration ("Original Motion"). The reasoning the court provided was that the Defendant had provided no evidence of any agreement between the parties reflecting an arbitration provision.

Though the minutes from 2/3/26, reflected this decision, there is no evidence that written notice of the Arbitration Order was ever served on the Defendant. In fact, the docket does not reflect that the Arbitration Order was ever filed.

In this Motion, and the attached declaration, Defendant provides evidence of a written agreement between the parties to resolve disputes, at the request of either party, through arbitration.

In the declaration that was included in the Motion, Defendant wrote that this evidence was not available to him at the time of the motion to compel arbitration because "Plaintiff's served/attached materials were incomplete ... and did not provide a clear, complete governing agreement tied to my alleged account." See Page 8 of Defendant's Motion.

Defendant attached exhibits to his Motion, purportedly of the agreement between the parties reflecting the arbitration provision, where the captions for the exhibits indicate that these agreements were publicly available. See Exhibits E, F and G of Defendant's Motion. Moreover, the introduction section of his Motion also indicates that he obtained this material from "Target's own published terms." See Page 1 of Motion.

Defendant provided no further explanation for the absence of this information in the Original Motion.

Analysis

CCP 1008 permits a court to reconsider its own ruling if it the court is presented with new or different facts than those on which the initial ruling was based *and* the moving party files the request for reconsideration within 10 days "after service upon the party of written notice of entry of the order."

However, "[A] party seeking reconsideration of a prior order based on 'new or different facts, circumstances or law' must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence." *Garcia v. Hejmadi* (1997) 58 CA4th 674, 690.

In the instant matter, since there is no indication of when the written notice of entry of the

Arbitration Order was served on Defendant – or even *if* it was served – there can be no argument that his Motion is untimely. The clock never began ticking.

Yet, Defendant fails to provide a satisfactory explanation about why he could not provide any evidence of the arbitration clause of the agreement in the Original Motion.

There's no evidence that Plaintiff failed or neglected to provide this information after a valid request from the Defendant. Yet even assuming that were the case, Defendant concedes that this information was publicly available, and he can offer no explanation why he did not provide this publicly available information to support his Original Motion.

In sum, the Defendant has not met his burden of showing reasonable diligence.

Disposition

Motion to Reconsider is Denied.

The court will file the Order and serve parties with a copy of the filed Order.

13. 9:00 AM CASE NUMBER: L25-11680

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. LINDSEY GUAY

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to dismiss the default judgment because Plaintiff learned, subsequent to filing the default judgment, that Defendant had filed for bankruptcy.

The Motion was served on Defendant by mail at an address where Defendant was served with process by virtue of substitute service.

Plaintiff cites Section 473(d) of the CCP as the basis for the vacating the judgment and dismissing the matter. But this section applies to judgments that are otherwise void, and it is not clear that the mere act of filing for bankruptcy renders a collections judgment void.

However, since no prejudice will flow to the Defendant – and, in fact, Defendant certainly stands to benefit from Plaintiff’s request – the court will grant the Motion and dismiss the matter w/out prejudice.

Disposition

Plaintiff’s Motion is granted.

Matter is dismissed.

Plaintiff shall submit the order.

14. 9:00 AM CASE NUMBER: L25-13162
CASE NAME: BANK OF AMERICA, N.A. VS. GABRIELLE WORLEY
***HEARING ON MOTION IN RE: TO VACATE JUDGMENT**
FILED BY: WORLEY, GABRIELLE J
TENTATIVE RULING:

Background

Defendant filed this Motion on 3/4/26, to vacate the default judgment, citing sections 582.5 and 473(b) of the CCP. No proof of service on the Plaintiff of the Motion has been filed.

Plaintiff, however, filed a Response in opposition on 5/8/26, and filed a proof service indicating mail service on the Defendant on the same day.

Default Judgment was filed 3/3/26.

Defendant has not filed a Reply.

Analysis

In the instant matter, it doesn’t appear that the parties followed service deadlines. Though Plaintiff appears to have filed their Response late (it must be filed and served at least 9 court days before the hearing), it is not clear that Defendant followed notice rules either, since they did not file a proof of service.

Though Defendant has a right to Reply to the Plaintiff’s response, they have not had the appropriate amount of time in which to do so, since the Response was not timely. So, it may be that Defendant intends to Reply but has not had the requisite time to do so; or, the Defendant may not wish to Reply at all.

Thus, the court is left with two options. The parties appear on 5/19/26, at 9am, and waive any notice issues, and the court will hear any further argument on 5/19/26, and render a decision.

Or, the court will simply continue the matter.

If neither party contacts the court by 4:30 pm, on 5/18/26, to indicate they would like to appear on 5/19/26, then the matter will be continued.

Disposition

The matter will be continued.

The court will provide notice to the parties of the next date for motion hearing.